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South Carolina Man Charged for Multimillion-Dollar Medicare Fraud and Ponzi Schemes

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For Immediate Release

Office of Public Affairs

Two indictments were unsealed today charging a South Carolina man with defrauding Medicare through a laboratory test scheme during the COVID-19 pandemic and with defrauding customers of his private charter jet company, AeroVanti Inc.

As alleged in the first indictment, during the COVID-19 pandemic, Patrick Britton-Harr, 41, of Charleston, South Carolina, formerly of Annapolis, Maryland, offered COVID-19 screening tests to nursing home patients across the country. Britton-Harr then allegedly fraudulently billed Medicare, through his company Provista Health, for expensive respiratory pathogen panel (RPP) tests for these patients. As alleged, these RPP tests were medically unnecessary, were never ordered by a treating physician as required, and many were never actually performed, including for patients who had died. Through Provista Health, Britton-Harr allegedly caused more than \$15 million in fraudulent claims for RPP tests to be submitted to Medicare, for which Medicare paid more than \$5 million.

As alleged in the second indictment, Britton-Harr owned and controlled AeroVanti and its affiliated entities. AeroVanti was a private air club that offered members a la carte access to private jets. Britton-Harr allegedly encouraged "Top Gun" members to pay \$150,000 upfront to secure block flight hours. In return, Britton-Harr allegedly promised to use their money to purchase specific aircraft, in which the Top Gun members would have a securitized interest. Britton-Harr allegedly recruited nearly 100 Top Gun members, who collectively paid nearly \$15 million in upfront payments, to purchase five aircraft. Instead of buying those aircraft, Britton-Harr allegedly misappropriated members' money for his own personal benefit, including to purchase yachts and jewelry, to pay his living expenses, and to rent a property near Tampa, Florida. As alleged, Britton-Harr then attempted to conceal his fraud by obtaining a \$1.5 million loan to purchase one of the aircraft he had already claimed to have purchased with Top Gun member funds by withholding material information from the lender to obtain the loan.

"The defendant allegedly perpetrated two fraud schemes, first exploiting the COVID-19 pandemic to defraud Medicare out of millions of dollars and then stealing millions more from customers of his aviation company, all for his personal benefit," said Matthew R. Galeotti, Head of the Justice Department's Criminal Division. "These indictments demonstrate the Criminal Division's commitment to rooting out bad actors who steal from taxpayer-supported health care programs and defraud American consumers."

"It is unconscionable for someone to defraud the government and others for personal gain, especially as we faced a global health crisis," said U.S. Attorney Kelly O. Hayes for the District of Maryland. "Britton-Harr showed a total disregard for those who depend on our Medicare system for health care services and for the individuals he scammed through his private-jet company. The U.S. Attorney's Office is committed to working with our federal law enforcement partners to bring those to justice who break the law and take advantage of others."

"Patrick Britton-Harr's repeated crimes reveal a man with no moral compass motivated by pure greed. His deceit and scheming resulted in a staggering amount of loss to American taxpayers and the public," says Special Agent in Charge William J. DelBagno of the FBI Baltimore Field Office. "He tried to fleece the U.S. government out of millions by taking advantage of a national crisis. After his laboratory testing business failed, Britton-Harr again turned to deception. Time and again, he chose to lie, steal, and deceive. No more. This investigation holds Britton-Harr accountable for his crimes and sends a clear message that the FBI and our partners will not allow such despicable behavior to go unchecked."

"Individuals who steal from Medicare waste taxpayer dollars and create incisions in the fabric that holds our health care system together," stated Deputy Inspector General for Investigations Christian J. Schrank of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "HHS-OIG will continue the pursuit of upholding the integrity, trust, and confidence in federal health care programs, which benefits the people they serve. HHS-OIG, in collaboration with our law enforcement partners, will continuously investigate alleged attempts to defraud these programs."

"The scope of the alleged fraud is staggering and underscores the extraordinary lengths to which individuals will go to deceive and exploit others under the guise of legitimate business, including private aviation services," said Special Agent in Charge Greg Thompson of the Department of Transportation Office of Inspector General (DOT-OIG), Mid-Atlantic Region. "The DOT-OIG remains steadfast in its commitment to working in coordination with our law enforcement and prosecutorial partners to pursue those who engage in egregious schemes designed solely for personal enrichment."

Britton-Harr is charged with five counts of health care fraud and one count of money laundering in the indictment related to his RPP scheme. Additionally, Britton-Harr is charged with six counts of wire fraud in the indictment related to his AeroVanti scheme. If convicted, he faces a maximum penalty of 20 years in prison on each wire fraud count and 10 years in prison on each health care fraud and money laundering count. A federal district court judge will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

The FBI, HHS-OIG, and DOT-OIG are investigating the cases.

Trial Attorneys David Peters and Chris Wenger of the Criminal Division’s Fraud Section and Assistant U.S. Attorneys Matthew P. Phelps and Ari D. Evans for the District of Maryland are prosecuting the cases.

An indictment is merely an allegation, and all defendants are presumed innocent until proven guilty beyond a reasonable doubt in a court of law.

Updated July 3, 2025

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